

104	Avalos vs. Magnum Management Corporation 25-01532165	1. Motion for Leave to File Amended Complaint Plaintiff, Francisco Avalos III, moves for an order granting leave to file a First Amended Class Action Complaint. The Motion is GRANTED. Defendants, Magnum Management Corporation, Six Flag Entertainment Corporation, Knott’s Berry Farm LLC, and Bobby Obezo have filed a notice of non-opposition stating that they do not oppose the instant motion for leave to file a First Amended Class Action Complaint. The moving papers sufficiently comply with the requirements of California Rules of Court, rule 3.1324(a)-(b). The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. (Code Civ. Proc. § 473(a)(1).) The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Ibid.) California courts generally exercise their discretion liberally to permit the amendment of pleadings at all stages of the proceeding in order to resolve cases on their merits. (IMO Development Corp. v. Dow Corning (1982) 135 Cal. App. 3d 451, 461.) This liberality only applies so long as there is no prejudice to the opposing party. (Higgins v. Del Faro (1981) 123 Cal. App. 3d 558, 564.) Leave to amend can be denied if the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party. (Hirsa v.
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Sup.Ct. (Vickers) (1981) 118 Cal. App. 3d 486, 490; Melican v. Regents of Univ. of Calif. (2007) 151 Cal. App. 4th 168, 176; Fisher v. Larsen (1982) 138 Cal. App. 3d 627, 649 [finding where plaintiff knew for over five months that certain claims had not been properly pleaded, and took no action to amend until after a summary judgment had been granted against it, it was not an abuse of discretion to deny leave to amend the complaint].)

“[I]t is a rare case in which a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case. If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530 [internal citations and quotation marks omitted].

Here, there is no showing of undue delay. Plaintiff’s counsel provides that the class-wide scope of Defendants’ violations could not be fully confirmed until Plaintiff had an opportunity to review Defendants’ payroll records and personnel files, which were received on December 15, 2025, and that the administrative prerequisite of submitting a written notice with the California Labor and Workforce Development Agency identifying Defendants’ Labor Code violations on behalf of Plaintiff and all Aggrieved Employees was completed on March 6, 2026. (Declaration of Julian Samaan, ¶¶ 5-7, 12.) Plaintiff’s counsel met and conferred with Defendants’ counsel regarding Plaintiff’s intent to amend the Complaint to add class-wide wage and hour claims and a PAGA representative claim on March 16, 2026, Defendants refused to stipulate to the filing of the First Amended Class Action Complaint, and

		Plaintiff filed the instant motion for leave to amend on May 8, 2026. (Id., ¶¶ 8-9, 12.) Nor is there any showing of prejudice. No trial date has been set, and there is no dispute that the action is in its early stages of discovery. Given that courts liberally grant leave to amend pleadings so that a case can be resolved on the merits, and in light of the lack of undue delay and lack of prejudice, Plaintiff's motion for leave to file the proposed First Amended Class Action Complaint is GRANTED. Plaintiff to serve and file the First Amended Class Action Complaint within 10 days. Plaintiff to give notice. 2. Case Management Conference
105	Stachowiak vs. Sandijan 25-01494613	Motion to Appear Pro Hac Vice x 2 Attorney Edward J. Hafer seeks an order allowing him to appear pro hac vice for Cross-Defendants Rampbell, Inc. and Lynne Anthony-Campbell (ROA 84.) Kylie T. Hance seeks an order allowing her to appear pro hac vice for Cross-Defendants Rampbell, Inc. and Lynne Anthony-Campbell (ROA 88.) To be eligible for admission pro hac vice: • The applicant must be admitted to practice before a U.S. court, or the highest court of any state or territory; and • The applicant must not be a California resident, nor regularly engaged in "substantial business, professional, or other activities" here; and